

IN THE Choose an item. COURT OF VICTORIA
AT [INSERT COURT LOCATION]
CRIMINAL DIVISION

[Insert Name of Informant]

Informant

-and-

[Insert Name of Accused]

Accused

SUBMISSIONS ON BEHALF OF THE INFORMANT

Date of document: [DATE]

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Prepared by:

[NAME OF PROSECUTOR]

VICTORIA POLICE

[Address of Office Location]

DREC Admissibility as Hearsay Evidence

1. Part 8.2, Division 7B of the *Criminal Procedure Act 2009* (Vic) ('CPA') contains the provisions in relation to the use of Digital Recorded Evidence-in-Chief ('DREC') in family violence proceedings. The provisions were introduced by *Justice Legislation Amendment (Family Violence Protection and Other Matters) Act 2018* section 116 and commenced operation on 03/10/2018.
2. The legislation was introduced in response to recommendation 58 of the Royal Commission into Family Violence, which stated:

Victoria Police conduct a trial in 2 divisions of the use of body-worn cameras to collect statements and other evidence from family violence incident scenes. The trial should be supported by any necessary legislative amendment to ensure the admissibility of evidence collected in criminal and civil proceedings. It should also be subject to a legislative sunset period, evaluation and the use of any evidence only with the victim's consent.¹
3. The language of the Recommendation indicates that it sought to ensure that evidence gathered in the context of family violence offending is admissible and was not envisaged to restrict that admissibility generally.

¹ Victoria, Royal Commission into Family Violence, *Final Report* (2016), 61
<http://rcfv.archive.royalcommission.vic.gov.au/MediaLibraries/RCFamilyViolence/Reports/RCFV_Full_Report_Interactive.pdf>.

Legislative Requirements for Admissibility as Evidence-in-Chief

4. The Second Reading Speech for the Division's enacting Bill stated that '[t]he Bill sets out several requirements for the making of a recorded statement, if it is to be admissible as the complainant's evidence-in-chief'.²
5. In order to use DREC as evidence-in-chief, the recording must comply with section 387F:

387F Admissibility of recorded evidence-in-chief

(1) Subject to this Division, a recorded statement referred to in section 387E is admissible in evidence as if its contents were the direct testimony of the complainant—

(a) in the proceeding; and

(b) unless the relevant court otherwise orders, in any new trial of, or appeal from, the proceeding.

(2) Subject to subsection (4), a recorded statement is admissible under subsection (1) if—

(a) the recorded statement complies with section 387G; and

(b) subject to subsection (3), a copy or transcript of the recorded statement was served in accordance with section 387H; and

(c) subject to subsection (3), the court is satisfied that, if the accused is not represented by a legal practitioner, the accused was given a reasonable opportunity to—

(i) view the recorded statement if it is in the form of an audiovisual recording; or

(ii) listen to the recorded statement if it exists only in the form of an audio recording and the accused has not been served with a copy of it; and

(d) at the hearing of the proceeding, the complainant—

(i) identifies himself or herself and attests to the truthfulness of the contents of the recorded statement; and

(ii) is available for cross-examination and re-examination.

(3) A recorded statement is admissible under subsection (1) despite non-compliance with subsection (2)(b) or (c) if the parties consent to its use as the complainant's evidence-in-chief.

(4) The court may rule as inadmissible the whole or any part of the content of a recorded statement and, if so, the court may direct that the recorded statement be edited or otherwise altered to delete any part that is inadmissible.

² Victoria, *Parliamentary Debates*, Legislative Assembly, 6 June 2018, 1770 (Martin Pakula, Attorney-General) <https://www.parliament.vic.gov.au/images/stories/daily-hansard/Assembly_2018/Assembly_Daily_Extract_Wednesday_6_June_2018_from_Book_7.pdf/>.

(5) Without limiting what is a reasonable opportunity for the purposes of subsection (2)(c), a reasonable opportunity is taken to have been given if—

(a) the accused was given an opportunity to view or listen to the recorded statement, as referred to in subsection (2)(c), while being questioned in relation to the alleged family violence offence; or

(b) the informant notified the accused in writing that the accused had the right to view or listen to the recorded statement, as referred to in subsection (2)(c), on a day arranged with the informant.

6. The legislation is proscriptive and all of the requirements must be met where the prosecution seeks to use DREC as evidence-in-chief.

Non-compliance with Legislation

7. It is conceded that any non-compliance with the legislative requirements will render the DREC inadmissible as the complainant's evidence-in-chief.
8. However, it is submitted that the specific reference to using DREC as evidence-in-chief intentionally omits reference to using DREC for any other evidentiary or hearsay purpose, as the legislation was not intended to limit its use beyond being used as recorded evidence-in-chief in family violence matters.
9. This context is supported by CPA s 387M that maintains the operation and effect of the remainder of the CPA and the *Evidence Act 2008* (Vic). That section states:

387M Division does not affect other provisions

This Division is in addition to the other provisions of this Part and of the Evidence Act 2008 and does not, unless the contrary intention appears, affect the operation of those provisions or that Act.

Examples

This Division does not affect—

- Division 2, which provides for restrictions on the admissibility of evidence about a complainant in criminal proceedings for sexual offences;
- section 65 of the Evidence Act 2008, which is an exception to the hearsay rule if a person is not available to give evidence;
- Part 3.10 of the Evidence Act 2008, which deals with various privileges in relation to evidence.

10. The legislation is clear that it does not affect the provisions contained in the *Evidence Act* and specifically refers to the hearsay provisions.
11. This is confirmed by the explanatory memorandum that accompanied the enacting legislation³:

³ Explanatory Memorandum, Justice Legislation Amendment (Family Violence Protection and Other Matters) Bill 2018, 74.

New section 387M

New section 387M provides that, unless the contrary intention appears, new Division 7B is in addition to the other provisions of Part 8.2 of the Criminal Procedure Act 2009 and of the Evidence Act 2008 and does not affect the operation of those provisions or that Act. This is to ensure that statutory provisions in Part 8.2 of the Criminal Procedure Act 2009 that protect complainants remain in place, and that the provisions of the Evidence Act 2008 such as the hearsay rule and various privileges also remain in place. Specific examples are provided as to the matters that new Division 7B does not affect.

12. It is submitted that this confirms that the drafters intended the *Evidence Act* to continue operating unless the contrary intention appears. The legislation evinces no contrary intention regarding the use of DREC outside the specific use as direct evidence-in-chief.
13. It is submitted that the use of the word 'available' in s 387F(2)(d)(ii) is deliberate and must be read in the context of the term used in the *Evidence Act* and therefore subject to the unavailable witness provisions contained in the Act.
14. It is conceded that where a complainant is an 'unavailable witness', then the requirements regarding DREC cannot be met and it may not be used as evidence-in-chief.
15. However, consistent with CPA s 387M, the provisions in the *Evidence Act* are otherwise not affected.
16. Therefore, it is submitted that the DREC is admissible as an exception to the hearsay rule pursuant to s 65 of the *Evidence Act* as affirmed in *DPP v Nicholls* [2010] VSC 397.